

**CHICKASAW TRIBAL LEGISLATURE**  
**Permanent Resolution Number 38-027**  
**Amendments to Title 21 of the Chickasaw Nation Code**  
**(Speeding)**

**WHEREAS**, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

**WHEREAS**, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

**WHEREAS**, the Chickasaw Tribal Legislature has previously enacted rules and regulations for speeding, and

**WHEREAS**, the Tribal Legislature desires to amend those rules and regulations.

**NOW, THEREFORE, BE IT RESOLVED**, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 21, Chapter 2, Section 21-204.2 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “\* \* \*”):

**SECTION 21-204.2**                      **SPEEDING.**

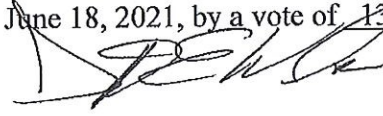
\* \* \*

C. Any Driver who violates or causes to be violated any of the provisions of this Section may be assessed a civil fine of ~~up to fifty dollars (\$50.00), plus an additional civil fine of up to fifty dollars (\$50.00) for each ten (10) miles per hour that such Driver has exceeded the maximum permissible rate of speed.~~:

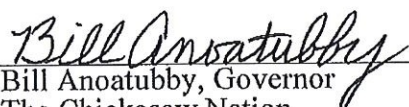
1.        fifty dollars (\$50) for up to ten (10) miles per hour that such Driver has exceeded the maximum permissible rate of speed;
2.        one hundred dollars (\$100) for eleven (11) to twenty (20) miles per hour above the speed limit;
3.        two hundred dollars (\$200) for twenty-one (21) to thirty (30) miles per hour above the speed limit;
4.        five hundred dollars (\$500) for any speed in excess of thirty-one (31) miles per hour above the speed limit.

\* \* \*

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on June 18, 2021, by a vote of 13 ayes, 0 nays, 0 abstentions.

  
\_\_\_\_\_  
Chairperson  
Chickasaw Tribal Legislature

  
\_\_\_\_\_  
Secretary  
Chickasaw Tribal Legislature

Concur:   
\_\_\_\_\_  
Bill Anoatubby, Governor  
The Chickasaw Nation

Date: JUN 18 2021

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**Explanation:**

This resolution amends Title 21, Section 21-204.2 of the Chickasaw Code, which sets forth fines more specifically.

**Presented by:**

Legislative Committee,  
Chickasaw Tribal Legislature